FILL OUT ALL SECTIONS OF THIS FORM BEFORE FILING WITH THE COUNTY CLERK AND FIDUCIARY CLERK/COURT – MUST BE COMPLETED WITHIN 30 DAYS OF SALE

If this is an E-Filed case, upload this form to NYSCEF as a "Foreclosure Action Surplus Monies Form"

FORECLOSURE ACTION SURPLUS MONIES FORM

SUPREME COURT/COUNTY COURT OF THE STATE OF NEW YORK:

COUNTY OF Bronx

WELLS FARGO BANK, NA

Index No. 381009/2012E

Plaintiff,

-against-

ELIZABETH R. MCKELVEY, AZELL A. WRIGHT, MIDLAND FUNDING LLC, NEW YORK CITY ENVIRONMENTAL CONTROL BOARD, NEW YORK CITY PARKING VIOLATIONS BUREAU, NEW YORK CITY TRANSIT ADJUDICATION BUREAU, UNITED STATES OF AMERICA ACTING THROUGH THE SECRETARY OF HOUSING AND URBAN DEVELOPMENT, DOMINIQUE THOMAS

Defendant.

MORTGAGED PROPERTY:
2217 HOMER AVENUE
BRONX, NY 10473

COUNTY: Bronx
SBL #: BLOCK 3614 LOT 25
Sale Date: March 16,2026

A. To be completed by the Referee

1. Final Judgment Amount per Judgment: $ 448,140.28
2. Adjusted Judgment Amount (Upset Price): $ ~~917,689.63~~ 390,000
   (This is the total amount due to the bank after post-sale disbursements, fees, taxes, utilities, etc.)
3. Sale Price: $ 540,000.00
   (To calculate if there is a surplus, subtract the higher of line 1 or line 2 from line 3 and enter any surplus on line 4)
4. Surplus Amount (enter $0.00 if no surplus) $ 150,000
   ***If there are surplus funds, attach proof/receipt that the surplus amount was deposited with the Treasurer, Comptroller, Commissioner of Finance, Clerk of Court, etc.*

Referee's TOTAL compensation awarded/fees earned in this matter: $ 500.00

Referee Name: Steven J. Baker, Esq. Telephone: 212-857-8230
Address: 2615 East 63rd Street, Apt 2, #3, Brooklyn, NY 11234
Email: sbaker@bm3law.com Signature/Date: 3/16/26

**If plaintiff is also the purchaser, complete both B. and C.*

B. To be completed by Plaintiff's Rep.

Name: Gross Polowy LLC
Address: 1775 Wehrle Drive, Suite 100, Williamsville, NY 14221
Telephone: (716) 204-1700
Email: info@grosspolowy.com
Signature/Date:

C. To Be Completed by Purchaser

Name: Jesus S. Sinchi
Address: 242 New Hackensack Poughkeepsie, NY 12603
Telephone: 347-484-1866
Email: Jshomesrealty@gmail.com
Signature/ Date:

Additional Copies of this Form can be found at https://www.nycourts.gov/forms/foreclosure/

Rev. 12/19